

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
TYRELL DIXON,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. QUINCY SMITH, Shield No. 4840 (Tax Id. No. 937559), Individually and in his Official Capacity, DET. JOHN WOO, Shield No. 7282 (Tax Id. No. 914208), Individually and in his Official Capacity, DET. GREGORY PADUANO, Shield No. 6300 (Tax Id. No. 959035), Individually and in his Official Capacity, DET. CHRISTOPHER KILLEN, Shield 1706 (Tax Id. No. 901774), Individually and in his Official Capacity, DET. JUILO NAPOLEONIS, Shield No. 1764 (Tax Id. No. 954169), Individually and in his Official Capacity, DET. DANIEL WADOLOWSKI, Shield No. 732 (Tax Id. No. 954413), Individually and in his Official Capacity, and P.O.s "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 18, 2024



COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, N.Y. 10279
(212) 374-9115

TO:

THE CITY OF NEW YORK
c/o SLYVIA O. HINDS-RADIX
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

DET. QUINCY SMITH, Shield No. 4840 (Tax Id. No. 937559)
32nd Precinct Detective Squad
250 W. 135th St., New York, NY 10030

DET. JOHN WOO, Shield No. 7282 (Tax Id. No. 914208)
NYPD Police Commissioners Office
1 Police Plaza, New York, NY 10038

DET. GREGORY PADUANO, Shield No. 6300 (Tax Id. No. 959035)
32nd Precinct Detective Squad
250 W. 135th St., New York, NY 10030

DET. CHRISTOPHER KILLEN, Shield 1706 (Tax Id. No. 901774)(Retired)
c/o NYPD HQ
1 Police Plaza, New York, NY 10038

DET. JUILO NAPOLEONIS, Shield No. 1764 (Tax Id. No. 954169)
32nd Precinct Detective Squad
250 W. 135th St., New York, NY 10030

DET. DANIEL WADOLOWSKI, Shield No. 732 (Tax Id. No. 954413)
32nd Precinct Detective Squad
250 W. 135th St., New York, NY 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TYRELL DIXON,

Plaintiff,

-against-

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, DET. QUINCY SMITH, Shield No. 4840 (Tax Id. No. 937559), Individually and in his Official Capacity, DET. JOHN WOO, Shield No. 7282 (Tax Id. No. 914208), Individually and in his Official Capacity, DET. GREGORY PADUANO, Shield No. 6300 (Tax Id. No. 959035), Individually and in his Official Capacity, DET. CHRISTOPHER KILLEN, Shield 1706 (Tax Id. No. 901774), Individually and in his Official Capacity, DET. JUILO NAPOLEONIS, Shield No. 1764 (Tax Id. No. 954169), Individually and in his Official Capacity, DET. DANIEL WADOLOWSKI, Shield No. 732 (Tax Id. No. 954413), Individually and in his Official Capacity, and P.O.s "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff TYRELL DIXON, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows that:

PARTIES

1. Plaintiff TYRELL DIXON is an African American male and has been at all relevant times a resident of Bronx County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform

all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times hereinafter mentioned DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

7. On or about March 24, 2021, at approximately 5:00 p.m., plaintiff TYRELL DIXON was lawfully in the vicinity of 139th St. and Lenox Ave., New York, NY, and had not committed any crimes and/or offenses nor was he behaving unlawfully in any way nor engaged in any activities as to elicit reasonable suspicion, when he was unlawfully seized, without reasonable suspicion nor probable cause, by members of the NYPD, specifically defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI, and P.O.s JOHN DOE #1-10, herein.

8. Subsequently, plaintiff was placed under arrest by said defendant officers DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI, and P.O.s JOHN DOE #1-10, who handcuffed his arms tightly behind his back and searched his person and effects.

9. No contraband was found on plaintiff's person nor in his effects nor did plaintiff have custody or control over any contraband.

10. At no time on March 24, 2021, did defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI, and P.O.s JOHN DOE #1-10, possess reasonable suspicion and/or probable cause to arrest plaintiff.

11. At no time on March 24, 2021, did defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI, and P.O.s JOHN DOE #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

12. Thereafter, plaintiff was placed in a police vehicle and transported to a nearby police precinct, upon information and belief, the 32nd Precinct (located at 250 W. 135th St., New York, NY).

13. Upon arrival at the precinct, plaintiff was detained, fingerprinted, photographed, searched, interrogated, and charged with crimes and/or offenses by the defendants herein. Specifically, plaintiff was charged with Criminal Possession Of A Weapon In The Second Degree And Attempted Criminal Possession Of A Weapon.

14. Subsequently, plaintiff was transported to Central Booking where he was further detained before being transported to Rikers Island following arraignment.

15. Plaintiff remained detained on Rikers Island until on or about March 28, 2021, when he was released on bail.

16. Specifically, plaintiff was detained for approximately five (5) days as a result of this unlawful seizure and arrest.

17. Thereafter, plaintiff was, *inter alia*, maliciously prosecuted and denied the right to a fair trial for approximately two (2) years and five (5) months and had to make numerous court appearances (approximately thirty (30) or more) in connection with these false charges, the false prosecution and the fabricated evidence against him.

18. Specifically, in connection with the plaintiff's arrest, defendants filled out false and/or misleading police reports, swore out false and deliberately misleading warrant affidavits, and forwarded them to prosecutors at the New York County District Attorney's Office falsely claiming that plaintiff was in possession, custody, or control over firearms and/or aided and abetting others in the possession of firearms and the commission of felony offenses despite the fact defendants possessed definitive evidence which showed that plaintiff was innocent of those false charges.

19. In addition, defendants knowingly and deliberately concealed, destroyed, and/or covered up exculpatory evidence proving plaintiff's innocence and/or negating any probable cause for his arrest and prosecution.

20. Subsequently, on or about August 29, 2023, plaintiff was acquitted of all charges against him in their entirety following a jury trial.

21. As a result of the foregoing, the plaintiff sustained, *inter alia*, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, physical injury, economic damages, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

22. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

23. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

24. All of the aforementioned acts deprived plaintiff of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

26. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

27. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

29. As a result of the aforesaid conduct by defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10, plaintiff was subjected to illegal, improper, and false arrest by the defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI, and P.O.s JOHN DOE #1-10, taken into custody and caused to be falsely imprisoned, detained, illegally searched, and confined, without any probable cause, privilege, or consent.

30. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SECOND CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 misrepresented and falsified evidence before the New York County District Attorney.

33. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL

WADOLOWSKI and P.O.s JOHN DOE #1-10 did not make a complete and full statement of facts to the District Attorney.

34. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 withheld exculpatory evidence from the District Attorney.

35. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

36. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

37. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 acted with malice in initiating criminal proceedings against plaintiff.

38. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

39. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

40. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 acted with malice in continuing criminal proceedings against plaintiff.

41. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

42. Specifically, defendants' DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff's arrest.

43. Notwithstanding the perjurious and fraudulent conduct of defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10, the criminal proceedings were terminated in plaintiff's favor on or about August 29, 2023.

44. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 created false evidence against the plaintiff.

47. Defendants, DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 filled out false and/or misleading police reports, swore out false and deliberately misleading warrant affidavits and forwarded them to prosecutors at the New York County District Attorney's Office falsely claiming that plaintiff was in possession, custody, or control over firearms and/or aided and abetting others in the possession of firearms and the commission of felony offenses despite the fact defendants possessed definitive evidence which showed that plaintiff was innocent of those false charges.

48. In addition, defendants knowingly and deliberately concealed, destroyed, and/or covered up exculpatory evidence proving plaintiff's innocence and/or negating any probable cause for his arrest and prosecution.

49. Defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

50. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants – upon information and belief, defendant DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI, and P.O.s JOHN DOE #1-10 – violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

51. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

53. The defendants DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in their presence by misrepresenting and

falsifying evidence regarding the circumstances surrounding plaintiff's arrest throughout all phases of the criminal proceedings.

54. Defendants, DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

55. As a result of the defendants' DET. QUINCY SMITH, DET. JOHN WOO, DET. GREGORY PADUANO, DET. CHRISTOPHER KILLEN, DET. JUILO NAPOLEONIS, DET. DANIEL WADOLOWSKI and P.O.s JOHN DOE #1-10 failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, physical and emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

58. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- iv. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- v. failing to intercede to prevent violations of plaintiff's constitutional rights; and,
- vi. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, use excessive force, and/or commit perjury in order to cover up police misconduct.

59. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.

60. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

61. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

62. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

63. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

64. The acts complained of deprived the plaintiff of his rights:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. Not to have summary punishment imposed upon him; and
- d. To receive equal protection under the law.

PENDANT STATE CLAIMS

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

66. On or about October 10, 2023, within (90) days after the claims herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

67. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

68. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about January 31, 2024.

69. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

70. Plaintiff has complied with all conditions precedent to maintaining the instant action.

71. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

73. Defendants misrepresented and falsified and/or omitted evidence before the New York County District Attorney.

74. Defendants did not make a complete and full statement of facts to the District Attorney.

75. Defendants withheld exculpatory evidence from the District Attorney.

76. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

77. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

78. Defendants acted with malice in initiating criminal proceedings against plaintiff.

79. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

80. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

81. Defendants acted with malice in continuing criminal proceedings against plaintiff.

82. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

83. Defendants made the specific false statements and/or omissions described in the proceeding paragraphs.

84. Notwithstanding the perjurious and fraudulent conduct of defendants the criminal proceeding against plaintiff was dismissed in its entirety on or about August 29, 2023.

85. As a result of this prosecution, plaintiff spent approximately five (5) days in custody and had to make multiple court appearances (approximately thirty (30)) before the charges against him were dismissed.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he lost wages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

87. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

88. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

89. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

90. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

91. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

92. Due to the actions and/or negligence of the defendants as set forth above, plaintiff suffered physical injury, pain, and trauma.

93. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, the plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
March 18, 2024

BY:



JOSHUA FITCH
GERALD COHEN
ILYSSA FUCHS
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ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff TYRELL DIXON in the within-entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
March 18, 2024



ILYSSA S. FUCHS